

THE STATE OF TEXAS
VS.
MEGAN MARIE WEAVER
19230 N COTTONWOOD GREEN LANE
CYPRESS TX 77433

SPN: 03143209
DOB: W F 07/25/1990
DATE PREPARED: 05/13/2022

D.A. LOG NUMBER: 2837385
CJIS TRACKING NO.:
AGENCY: CFP
O/R NO: 2201226
ARREST DATE: TO BE

FILED
Marilyn Burgess
District Clerk

MAY 18 2022

Time: 1403

By: Yab
Harris County, Texas

NCIC CODE: 1199 01

RELATED CASES:

FELONY CHARGE: **IMPROPER RELATIONSHIP WITH STUDENT**

CAUSE NO: 1770566
HARRIS COUNTY DISTRICT COURT NO: 209
FIRST SETTING DATE:

COURT ORDERED BAIL: TO BE SET AT
MAGISTRATION
PRIOR CAUSE NO:
CHARGE SEQ NUM: 1

IN THE NAME AND BY AUTHORITY OF THE STATE OF TEXAS:

Before me, the undersigned Assistant District Attorney of Harris County, Texas, this day appeared the undersigned affiant, who under oath says that he has good reason to believe and does believe that in Harris County, Texas, **MEGAN MARIE WEAVER**, hereafter styled the Defendant, heretofore on or about **November 20, 2021**, did then and there unlawfully, while an employee of a public secondary school, intentionally and knowingly engage in sexual intercourse with F.P., hereinafter called the Complainant, a student who was enrolled at the school at which the Defendant worked and who was not the Defendant's spouse, by causing the penetration of the Defendant's female sexual organ with the Complainant's male sexual organ.

Probable Cause

Affiant, Sergeant Carol Kelly, a certified peace officer employed by Cy-Fair ISD Police Department, believes and has reason to believe Megan Marie Weaver (White/Female, 07/25/1990), hereafter styled the Defendant, committed the felony offense of Improper Relationship on or about November 20, 2021 inside the Defendant's residence, located within Harris County, Texas.

Affiant's belief is based on the following facts:

On Wednesday, March 23, 2022, Affiant received an email from Human Resource Director Claudia Hernandez. The email stated a Langham Creek High School (LCHS) student, K.G., had informed her teacher, Julie Sarznski, that there was a 'predator' teacher having multiple affairs with students. Sarznski, sent an email to the associate principal, who informed the principal, Dr. Jose Martinez. Dr. Martinez interviewed the student, K.G., who stated that another student told her that a boy she was dating told her that he had "hooked up" with a teacher. K.G. stated that this other student identified the boy as a Langham Creek High School student, identified by his initials F.P. who is 18 years of age and hereafter referred to as the Complainant. K.G. also identified the teacher as Megan Weaver, hereafter the Defendant.

On Friday, March 25, 2022, Director Hernandez and I interviewed N.B. at her high school. N.B. was the student who had informed K.G. of what the Complainant told her. N.B. stated she went to a theater arts trip in November 2021. She stated that she knew K.G. through theatre and social media, and during the trip she told K.G. that she and the Complainant had started talking on Snapchat. N.B. told them that the Complainant told her he had sex with a teacher. Complainant said he and the teacher were drinking alcoholic drinks and then had sex. Complainant sent a photo of him and a female he said was the teacher to N.B. on Snapchat. N.B. described the female as having dark brown hair and wearing glasses. Complainant never told her the name of the teacher, but she believed the teacher taught English. N.B. tried to find the Complainant on Snapchat but could not find him and assumed he must have unfriended her. N.B. also stated that a friend of the Complainant, identified by his initials L.M.

Affiant checked the Complainant's class schedule and saw that the Defendant was his English teacher for fourth period in room 2408.

On Sunday, March 27, 2022, at 11:20am, Affiant went to the Complainant's residence and met with him and his parents. Affiant told the Complainant and his parents about the information that was reported, that the Complainant had sex with the Defendant. Complainant denied having sex with any teacher. Affiant asked the Complainant if he knew L.M., and the Complainant's mother state that that person lived with them. Affiant then spoke with L.M., a student at LCHS, and he admitted to hearing rumors about the Complainant and the Defendant. L.M. said that he and the Complainant would sometimes hang out in the Defendant's classroom during lunch. Complainant admitted that he would skip class and go sleep in the Defendant's classroom. Complainant said people (students) started asking him if he was having sex with her. Complainant said because of all the rumors he deleted all his social media accounts. He said the rumors were

stressing him out and he continued to deny having sex with the Defendant. Affiant left her contact information with the Complainant and his parents.

Around 1:30pm that same day, Affiant received a phone call from the Complainant's mother informing the Affiant that the Complainant wanted to speak again. Affiant went to the Complainant's house, and while in the living room with the body worn camera activated, the Complainant told Affiant the following:

That the Complainant started giving the Defendant little compliments to let her know he was interested. The Complainant stated that one night on the weekend, the Defendant called him through Schoology. He believed that it was before Thanksgiving in 2021. Complainant stated that when the Defendant called that she was drunk and just got into a fight with her husband. Complainant stated that that is when they set a date for him to go over to her house. The next day the Defendant called and told him that he cannot tell anyone about the phone call, but she kept calling through Schoology. Complainant stated that at some point the Defendant, who he identified as Megan Weaver, invited him over to her house. When the Complainant went to her house, the Defendant told him "I have one rule - no sex". The Complainant stated that they both started drinking tequila and after a few drinks, the Defendant told him "okay one kiss". Complainant stated that one thing led to the other and they ended up having sex in the Defendant's bedroom. The Complainant stated that they were both naked and that by sex he meant that they had sexual intercourse and that the Defendant put her mouth on his penis.

At some point during the conversation with the Complainant, he made the correction that the Defendant contacted him through Remind 101 (message system used by teachers) and not Schoology. The Complainant also provided a description of the interior of the Defendant's home, including her bedroom.

The Complainant's mother provided the Affiant with their phone bill, and there were numerous calls from October 30th to December 21, 2021 between the Complainant and the Defendant's numbers.

On Tuesday, March 29, 2022, Director Hernandez and Affiant met with LCHS Principal Dr. Jose Martinez and interviewed several students. All interviews were conducted with my body camera activated. They interviewed the students who made the tip to the hotline and both stated that the Defendant would have the boys hang out in her class. They also spoke with a friend of the Complainant, identified by his initials M.R., who stated that one night they (him, the Complainant, and L.M.) were all together hanging out and driving around. He stated that the Complainant got a phone call and stepped outside to talk. He was away for about 20-30 minutes. When the Complainant came back, he said that the Defendant had called him. M.R. said he believed it was November (2021) because it was shortly after the Complainant's birthday. M.R. said that the Complainant showed him a video from his phone of the "Complainant lying in bed, Ms. Weaver was asleep on his chest." M.R. said he recognized the Defendant because she was his teacher too.

They also spoke with L.M. again, and he said that he was in the car with Complainant when the Complainant got a call from the Defendant. He was also in the car with the Complainant when the Defendant called one time. He also knows that the Complainant left the house one time to see the Defendant, because they have the Live360 app and he followed him that night to a house with a black four door SUV parked in the neighborhood (the Defendant drives a black Nissan). L.M. stated that sometime in November of 2021, the Complainant told him that he was going to the Defendant's house the next day. When the Complainant came home, he told L.M. that he had sex with the Defendant and that the Complainant showed him a picture on his phone of Complainant and the Defendant in her house. L.M. said that he saw the Complainant leave the Complainant's house in her car.

On Thursday, April 1, 2022, Director Hernandez and Affiant met with LCHS Principal Dr. Jose Martinez and interviewed J.N., a student at LCHS. Director Hernandez asked J.N. to tell her what he knew about Complainant and the Defendant. J.N. said he knew they had a relationship. He said it started out with Complainant flirting with her during class. J.N. said he found out about Complainant and the Defendant on Snapchat when the Complainant sent pictures and a video. Complainant sent a video of the Defendant's nightstand with a picture of the Defendant and her fiancée on it. The video also showed the Defendant asleep on the Complainant's chest. Complainant was smoking weed in the video. J.N. looked on his phone and found the text messages on Friday, December 17, 2021 where the Complainant asked him to come get him from the Defendant's house. Affiant took a screen shot of Josh's phone showing the text messages.

Affiant received a consent to search the Complainant's phone from the Complainant and his mother. The phone was processed and the Affiant saw that the Complainant had two pictures and two videos he took of the Defendant on November 10, 2021 between 10:51am and 11:19am. Complainant took a picture of himself and the Defendant on November 12, 2021 at 2:15pm and another picture of the two of them on November 15, 2021 at 8:16am. Complainant also had a picture of the Defendant on his phone that was taken on November 18, 2021 at 11:17am. All pictures appeared to have been taken while in Weaver's classroom at LCHS. Affiant also observed text messages between Complainant and his brother on November 19, 2021 at 3:25pm. Complainant's brother texted "u linked w her already?" Complainant replied "not outside of school, she told me today her fiancée outta town so i told her was that an invite n she told me she was gon call me tn." The next picture on Complainant's phone was on November 19, 2021 at 5:29pm and was a picture of an upper leg covered in The Little Mermaid pajama pants. (Complainant said he wore Ariel pants to the Defendant's house in his interview with Director

Hernandez.) The next three pictures were taken on November 20, 2021. The first two pictures taken at 3:09am, were selfies of the Defendant and Complainant standing in a kitchen. Behind them on the kitchen counter was an empty liquor bottle. In the second selfie, Complainant is kissing the Defendant on the cheek. The kitchen has white or cream walls and trim, dark brown cabinets and a sign over the pantry door that says "gather" in black cursive. There is an animal skull with horns hanging on another wall. The third picture taken on November 20, 2021 at 3:26am is a picture looking down at Complainant and the Defendant. Complainant is bare chested and the Defendant is laying on his shoulder. This picture matches the description of the video Complainant said he took while lying in the Defendant's bed. Affiant looked on HAR.com and located the Defendant's residence and observed a kitchen on HAR that matched the kitchen in Complainant's pictures. Affiant located an Uber trip on Complainant's phone. An Uber was taken from the Defendant's house to Complainant's house on November 21, 2021 at 5:10am. The text messages, pictures and Uber record were all marked as Key Evidence in the Oxygen report.

Affiant contacted the Defendant by phone and Affiant arranged to meet with her on April 7, 2022 at her home in Harris County, Texas. Affiant arrived at her house with body camera activated and knocked on the door. The Defendant answered the door and the body worn camera captured the interior of the Defendant's home which matched the description given by Complainant. Affiant explained the criminal charge that were being investigating and the Defendant stated she was not comfortable answering any questions without her attorney, there conversation was terminated and Affiant left. Affiant captured a snapshot from my body camera video of the interior of the Defendant's house to include the kitchen area. The kitchen area on my snapshot matched the background of the pictures of Complainant and the Defendant found on Complainant's cell phone. The "gather" sign was above the pantry and the animal skull with horns was hanging in the same location.

Given all information, Affiant believes that the Defendant committed the offense of Improper Relationship with a Student in Harris County, Texas by intentionally and knowingly engaging in sexual intercourse (contact of the Complainant's sexual organ with the Defendant's female sexual organ) with the Complainant on November 20, 2021.

AGAINST THE PEACE AND DIGNITY OF THE STATE.

Signed and sworn by me on 05-13-22

Duly attested by me on 5/13/22

Carol Kelly

AFFIANT

[Signature]

Assistant District Attorney
Harris County District Attorney's Office
TBC No. **SBN 24097749**

Eric Paulton

Witness (Peace Officer)

Eric Paulton 56920

Witness Printed name & Badge or Payroll number

COMPLAINT